

53	<i>Nguyen vs. Botros</i>	Plaintiff James Nguyen’s Motion for Leave to File a First Amended Complaint naming new party Dina Moussa, D.D.S. is DENIED. Due process forbids relation back where the amended complaint is against a new defendant—i.e., one not named in the original complaint and not served as a “Doe”: “The straightforward rule is that amendment after the statute of limitations has run will not be permitted where the result is the addition of a party who, up to the time of the proposed amendment, was neither a named nor a fictitiously designated party to the proceeding.” (Ingram v. Sup.Ct. (Slinkard) (1979) 98 Cal.App.3d 483, 492; Woo v. Sup.Ct. (Zarabi) (1999) 75 Cal.App.4th 169, 176.) Here, the injury occurred in 2019 and 2020 according to the Complaint and proposed first amended complaint. (ROA 1 and ROA 168, Ex. A.) Specially appearing Defendant Dina Moussa, D.D.S. has shown that the statute of limitations has run for all of the proposed claims against this new party. Plaintiff chose not to file a reply or respond to these arguments. The Motion is therefore DENIED.
54	<i>Sinha vs. Yang</i>	Cross-Defendant Alexander Christopher Shilvock’s motion for good faith settlement determination under Code of Civil Procedure section 877.6 for his prelitigation settlement with plaintiffs Bilmal Sinha, Sushma Sinha, and

Bhavya Sinha, and for dismissal of certain cross-claims is GRANTED.

Cross-Defendant is to submit a proposed order.

Facts

This is an action for personal injuries and wrongful death of Plaintiffs' decedent as a result of a series of car collisions.

According to the allegations of the complaint, Plaintiff Bhavya Sinha was driving her car with her brother, Plaintiffs' decedent, as a passenger on the 5 freeway at night. Plaintiffs' allege Cross-Defendant rear-ended Bhavya's car when she stopped because another car had stopped in front of her. Plaintiff Bhavya and Cross-Defendant put on their hazard lights. All three exited the cars to exchange information.

While Plaintiff Bhavya and Cross-Defendant were doing this, another driver rear-ended Cross-Defendant's vehicle, pushing it into Plaintiff's decedent, injuring him and propelling him into the freeway lanes of traffic. While Plaintiff's decedent was in the lanes of traffic, Defendant Vincent Han Lee ran into him, injuring him severely. He ultimately died in his sister's arms. [Complaint (ROA # 2), ¶¶ 8-14.]

Prior to Plaintiffs' filing their complaint, Cross-Defendant settled with them for essentially his policy limits of \$30,000. [Shilvock Decl. (ROA #85), ¶¶ 14-16; Hoffman Decl. (ROA #88), ¶¶ 7, 9-11 and Ex. C.] At that time Cross-Defendant had no other assets. He did not own any real estate or a car and did not have investments or savings. [Id., ¶ 17.]

Plaintiffs filed their complaint for wrongful death against Defendant Lee and the owner of the car he was driving, Tiffany Yang. [Complaint, ¶¶ 4-5.]

Lee and Yang answered and filed a cross-complaint for equitable indemnity, contribution and indemnity, declaratory relief regarding indemnity and contribution rights, and negligence (not for personal injuries arising from the accident but for costs incurred) against Cross-Defendant and Kenichiro Komatsu. [Cross-Complaint (ROA #22.)]

For his part, Cross-Defendant declares that when Plaintiff Bhavya stopped in lanes because of the car in front of her she did not put on her hazards, limiting his ability to see the car in time to stop. Further, no one was injured when he rear-ended her car. When he and Plaintiff, and Plaintiffs' decedent, exited their cars, Cross-Defendant urged Plaintiff and Plaintiffs' decedent to "join [him] in moving both cars to side of the freeway before exchanging information, but they declined to do so." [Shilvock Decl., ¶¶ 5-9.]

While they were exchanging information, a third car, driven by Cross-Defendant Kenichiro Komatsu, rear-ended Cross-Defendant's car, causing it to strike Cross-Defendant, Plaintiff Bhavya and Plaintiffs' decedent – injuring all of them and knocking them to the ground and pushing Plaintiffs' decedent into the adjacent lane. [Id., ¶¶ 10-11.] Defendant Lee then struck Plaintiffs' decedent when Defendant Lee swerved to avoid Cross-Defendant's car. [Id., ¶¶ 12-13.]

No one has presented any evidence that the collision between Shilvock's car and Plaintiff Bhavya caused injuries to any party. [Hoffman Decl., ¶ 4.]

Legal Standard

A notice of motion for good faith settlement determination “must” list each party and each pleading affected by the settlement, including the date on which the affected pleading was filed. CRC 3.1382.

Section 877.6 applies to a settlement between a plaintiff and an alleged tortfeasor. Cal. Code Civ. Proc. § 877.6(a)(1). Section 877.6 allows a settling defendant to obtain a determination that his settlement is in good faith, and thus to bar action for contribution or indemnity by the remaining tortfeasors. Cal. Code Civ. Proc. § 877.6(c). The word alleged means the defendant need not be found liable; the plaintiff’s allegations are sufficient. *Hartford Acc. & Indem. Co. v. Superior Court* (1995) 37 Cal. App. 4th 1174, 1179.

A written settlement agreement need not be executed and presented with the motion for good faith settlement determination so long as the court and all the parties are timely advised of the important terms of the settlement. *Alcal Roofing and Insulation v. Superior Court* (1992) 8 Cal. App. 4th 1121, 1127.

As to the good faith determination itself, there is no precise yardstick for measuring “good faith” of a settlement with one of several tortfeasors. But it must harmonize the public policy favoring settlements with the competing public policy

favoring equitable sharing of costs among tortfeasors. To accomplish this, the settlement must be within the “reasonable range” (within the “ballpark”) of the settling tortfeasor’s share of liability for the plaintiff’s injuries. *Tech-Bilt, Inc. v. Woodward-Clyde & Assoc.* (1985) 38 Cal. 3d 488, 499.

The California Supreme Court in *Tech-Bilt v. Woodward-Clyde & Assoc.*, 38 Cal. 3d 488 (1985), set forth the factors to determine good faith. The factors are: (1) a rough approximation of plaintiffs’ total recovery and the settlor’s proportionate liability; (2) the amount paid in settlement; (3) the allocation of settlement proceeds among plaintiffs; (4) the recognition that a settlor should pay less in settlement than he would if he were found liable after a trial; (5) the financial conditions and insurance policy limits of settling defendants; (6) the existence of collusion, fraud or tortious conduct aimed to injure the interests of nonsettling defendants. *Tech-Bilt*, 38 Cal. 3d at 499-500.

The most important factor is the settling party’s proportionate liability. *Mattco Forge, Inc. v. Arthur Young & Co.*, 38 Cal. App. 4th 1337, 1350 (1995). A court must consider not only the settlor’s potential liability to the plaintiff, but also its proportionate share of culpability as among all parties alleged to be liable for the same injury. *TSI Seismic Tenant Space, Inc. v. Superior Court*, 149 Cal. App. 4th 159, 166 (2007). Because a good faith determination bars indemnity claims by non-settling parties, the true value of the settlement to the settlor may not be the amount paid to the plaintiff, but rather the value of the shield against such indemnity claims. *Id.* at 166-67.

Under the statute, the burden of proof is on the party opposing the good faith determination. Cal. Code Civ. Proc. § 877.6(d). Thus, where the nonsettling defendants do not oppose a motion for good faith settlement determination on the good faith issue, “a barebones motion which sets forth the ground of good faith, accompanied by a declaration which sets forth a brief background of the case is sufficient.” *City of Grand Terrace v. Superior Court* (1987) 192 Cal. App. 3d 1251, 1261. In other words, only when the application is contested or motion for good faith determination is opposed need the court consider and weigh the Tech-Bilt standards. *Id.*

Where there is one plaintiff with a single injury (e.g. personal injury) suing multiple defendants, one defendants’ cash settlement payment will offset the liability of remaining defendant(s) in the same amount as the settlement. (*Alcal*

Roofing, *supra*, 8 Cal. App. 4th at 1124.) In that case, no allocation is necessary at the settlement stage. (*Id.*)

The total amount of damages claimed is not the only criterion. Also relevant is the likelihood that the settling defendant might prevail against a plaintiff’s claims. By definition, determination of a “ballpark” amount includes consideration of the possibility that the plaintiff will not prevail – that is, it is a determination of what a reasonable person could believe the plaintiff would recover at trial. *Cahill v. San Diego Gas & Elec. Co.* (2011) 194 Cal. App. 4th 939, 964-65.

In *Cahill v. San Diego Gas & Elec. Co.* (2011) 194 Cal.App.4th 939, 967-68, the court disregarded the plaintiff’s likely recovery of \$5 million and

affirmed a finding that a \$25, 000 settlement was proportionate –or, in the ballpark—on the evidence that the settling defendant was not likely to be found liable at trial. “[B]ased on the information available in April 2009, the trial court could rationally conclude a reasonable person could believe Cahill's approximate total recovery at trial would be insubstantial, if any, and Owners would likely have no proportionate liability for that total recovery based on the absence of a viable causation theory in April 2009.” Id. at 967.

Discussion

Cross-Defendant has not presented any evidence as to the amount of Plaintiffs’ claims or likely total recovery. On the other hand, he has presented evidence that supports the conclusion that at trial he could very well not be found liable for Plaintiffs’ injuries at all. Even under Plaintiffs’ allegations, Cross-Defendant is not responsible for injury to or the death of their decedent. And even their negligence claim, which seeks recovery for Bhavya’s injuries, is premised on her suffering in seeing her brother struck and dying. Under Cross-Defendant’s evidence and Plaintiffs’ allegations, Cross-Defendant’s actions, while in the chain of events, are not the legal cause of Plaintiffs’ decedent’s death. See *Mitchell v. Gonzales* (1991) 54 Cal.3d 1041, 1049 (ruling that “but for,” or proximate cause, test should not be used to establish liability in negligence causes of action).

A finding of good faith is also supported by the evidence that Cross-Defendant had no other assets that Plaintiffs could have recovered had they sued him and obtained a higher verdict. *Tech-Bilt, Inc. v. Woodward-Clyde & Associates*

(1985) 38 Cal.3d 488, 499 (“And even where the claimant's damages are obviously great, and the liability therefor certain, a disproportionately low settlement figure is often reasonable in the case of a relatively insolvent, and uninsured, or underinsured, joint tortfeasor.”); Schmid v. Superior Court (1988) 205 Cal.App.3d 1244, 1248–1249 (“No evidence suggests that Schmid has any assets, or any prospect of acquiring assets, other than her insurance policy. Yet disapproval of the good faith of the settlement would doubtless require Schmid to continue her defense, possibly at the expense of her insurer, to avoid a judgment in excess of her policy limits that could require her to declare bankruptcy. We see no virtue in this. Schmid's continued defense would simply increase her defense costs (possibly producing an unnecessary ultimate boost in insurance premiums) and needlessly add to the work of all personnel of the court.”)(footnote omitted); Cahill v. San Diego Gas & Electric Co. (2011) 194 Cal.App.4th 939, 960 (“The trial court's evaluation of the good faith of a settlement must “be made on the basis of information available at the time of settlement.”).

Finally, there is no opposition to Cross-Defendant’s motion.

Based on the above, the court GRANTS Cross-Defendant’s motion for good faith settlement determination under Code of Civil Procedure section 877.6.